

26STCV02017 26STCV02017

County: los-angeles

Division: Civil Law and Motion

Department: 836

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Case Number: 26STCV02017 Hearing Date: June 23, 2026 Dept: 836

APPLICATION FOR RIGHT TO ATTACH ORDER

Date: 6/23/26

(1:30 PM)

Case: Galco

International Inc. v. Soheil Darvish, et al. (26STCV02017)

TENTATIVE

RULING:

Plaintiff Galco International Inc.'s UNOPPPOSED application for

right to attach order with respect to defendant Soheil Darvish is GRANTED.

Pursuant to CCP §484.090, the Court finds:

1.

the claim is one upon which attachment may be issued;

2.

plaintiff has established the probable validity of the

claim;

3.

attachment is not sought for any purpose other than

recovery on the claim; and

4.

the amount to be attached is greater than zero.

On March 28, 2023, Plaintiff Galco International Inc. made a

commercial loan of \$2,011,072 to 202 Main LLC; the agreement was memorialized

in a Promissory Note, dated March 28, 2023. (Kerekes Decl. ¶ 3 & Ex. A.) In

connection with the loan, defendant Soheil Darvish executed a Personal

Guarantee, which was secured by a pledge of his 50% membership interest in Fig

Court LLC, as well as all distributions and proceeds resulting from that

membership interest. (Kerekes Decl. ¶ 3 & Exs. B-C.) On March 2, 2024, plaintiff perfected a lien

against defendant's 50% membership interest in Fig Court LLC filing a UCC-1.

(Kerekes Decl. ¶ 3 & Ex. D.) The

maturity date of the Promissory Note was May 22, 2023, but no payment was made.

(Kerekes Decl. ¶ 3.)

Separately, defendant and his wife, Niloofar Darvish, were

in the midst of divorce proceedings; defendant's wife claimed a one-half

interest in defendant's 50% membership interest in Fig Court LLC. (Kerekes

Decl. ¶4.) Niloofar thus recorded a lis pendens against Fig Court LLC's real property 4201 N. Figueroa Street, Los Angeles ("Fig Court Property"). (Kerekes Decl. ¶ 4 & Ex. E.) When the Fig Court Property was going to be sold, defendant, Niloofar, and plaintiff entered into a written agreement pursuant to which Niloofar would release the lis pendens, and, in exchange, the proceeds of defendant's share would be held in a trust account controlled by Niloofar's divorce attorney. (Kerekes Decl. ¶ 5 & Ex. F.) On October 8, 2025, the Fig Court Property was sold; defendant's share of the proceeds was \$254,961.85, in accordance with his Fig Court LLC membership interest. (Kerekes Decl. ¶¶ 5-6.) Although plaintiff attempted to assert a third-party creditor claim in the divorce proceedings, the family law court issued a tentative statement of decision that split equally the proceeds of the Fig Court Property sale between defendant and his wife. (Kerekes Decl. ¶¶ 9-12 & Exs. J-M.) Thus, pursuant to the family law court decision concerning the equal split between defendant and Niloofar of defendant's share of the of the Fig Court Property proceeds, defendant's remaining share of the proceeds is now \$127,480.92. (Kerekes Decl. ¶ 12.)

Plaintiff has learned that defendant's cousins, through the Raffi Family Trust, brought an action to collect \$1,200,000 on a promissory note, which resulted in a stipulated judgment in the Raffi Family Trust's favor, thereby leading to the Raffi Family Trust filing a Notice of Judgment

Lien in the divorce proceedings. (Kerekes Decl. ¶ 13 & Ex. O [Settlement Agreement], Q [Raffi Family Trust complaint], R [Stipulated Judgment].) On April 21, 2026, plaintiff learned that the Raffi Family Trust was seeking to release plaintiff's share of the Fig Court Property proceeds held in the trust account, which plaintiff opposed. (Kerekes Decl. ¶ 16 & Exs. T-U.) On April 29, 2026, plaintiff filed Doe Amendments to include the trustees of the Raffi Family Trust in the instant action. (Kerekes Decl. ¶ 14 & Ex. Y.)

Plaintiff asserts that it has a priority lien on defendant's one-half of the net proceeds because its lien has existed since March 2, 2024, whereas the Raffi Family Trust did not file a judgment lien until April 11, 2026. (Kerekes Decl. ¶ 17 & Exs. D, S.)

Plaintiff has shown that defendant has been in breach of his Personal Guarantee since May 22, 2023, when the Promissory Note matured and no payment was or has ever been made. (Kerekes Decl. ¶ 3 & Exs. A-D.) The Personal Guarantee was secured by the Pledge Agreement concerning defendant's 50% membership interest in Fig Court, LLC, and the lien was perfected on March 2, 2024. (Kerekes Decl. ¶ 3 & C-D.) Plaintiff's lien was perfected before the Raffi Family Trust filed its Notice of Judgment Lien against defendant on April 11, 2026. (See Kerekes Decl., Exs. D, S.)

Based on the foregoing, the application is GRANTED. The Court will sign the Proposed Order, electronically received 5/14/26, entitling plaintiff to attach \$127,480.92 held in the client trust account of Jonathon Pakravan. Before any writ will issue, plaintiff shall post an undertaking in the amount of \$10,000.